

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 09
JUDICIAL OFFICER: JOHN P DEVINE
HEARING DATE: 12/08/2025

ALL REMOTE APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties may appear by Zoom unless told to appear by another method. For all other matters, if argument is requested, appearances may be by Zoom or in person

Please email Dept09@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1602392251?pwd=WmE4bG5iK0J3WWtTOHpteVBjRlBMQT09>

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00793
CASE NAME: NOBLE LEARNING ACADEMY VS. WALNUT CREEK PRESBYTERIAN CHURCH
HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION
FILED BY: WALNUT CREEK PRESBYTERIAN CHURCH
TENTATIVE RULING:

Hearing **continued** to February 9, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
*HEARING ON MOTION IN RE: STAY THE ACTION PENDING DETERMINATION OF APPEAL
FILED BY: BNSF RAILWAY COMPANY
TENTATIVE RULING:

Defendant BNSF Railway Company's motion for a stay is **denied**.

This case arises out of an accident at a railroad crossing. Decedent Joshua Schaefer was in a